

Form No: HCJD/C-121
ORDER SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Writ Petition No.38173 of 2016

Shahrukh Aamir Ubaid V/S National Highway & Motorway Police

<i>S.No.of order / Proceedings</i>	<i>Date of order /Proceedings</i>	<i>Order with signatures of Judge, and that of parties or counsel, where necessary.</i>
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05.12.2016	Mr. Muhammad Suleman, Advocate for the Petitioner. Miss Sadia Malik, Standing Counsel
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This order shall also decide Writ Petition No.38191 of 2016 as well as instant petition as similar questions of law and facts are involved in both these writ petitions.

2. In above writ petitions, the Petitioners are seeking direction against the Respondent, namely National Highway and Motorway Police, Islamabad, to appoint the Petitioners as Junior Patrol Officer (BS-05) on Punjab Minority Quota.

3. Learned counsel for the Petitioners submitted that the Petitioners applied for the post of Junior Patrol Officer (BS-05) advertised by the Respondent on Punjab Minorities Quota in which the Petitioners appeared, qualified physical and written test and obtained 59 and 73.5 marks respectively in total. Further the Petitioners submitted that the names were shown as qualified candidate at Serial No.10 and Serial No.159 respectively of the lists however, surprisingly later on in the next list the names of the Petitioners were excluded by Balochistan Testing Service and names of other candidates were

incorporated who have less marks than the Petitioners without any lawful or just cause.

4. At the outset, the learned Law Officer has raised objection regarding the territorial jurisdiction of this Court and submitted that the direction is being sought against the Respondent, National Highways & Motorway Police whereas Balochistan Testing Service, Headquarter is at H.No146/528/A, Club Road, Quetta Cantt, Balochistan which falls within the territorial jurisdiction of Balochistan High Court and this Court has no jurisdiction to take cognizance of the matter.

5. Arguments heard. Record perused.

6. From the perusal of the record it reveals that prima facie the Petitioners are aggrieved from the conduct of Balochistan Testing Service, Headquarter H.No146/528/A, Club Road, Quetta Cantt, Balochistan who allegedly excluded the names of the Petitioners from the list of successful candidates and deprived them from their valuable rights of appointment as Junior Patrol Officer (BS-05) on Punjab Minority Quota which falls within the domain of territorial jurisdiction of Balochsitan High Court. Further, the only Respondent in this Petition is National Highway & Motorway Police, Plot No.2A, G-13 Markaz Islamabad and the action against whom is sought is in Quetta as per Vacancy Announcement. In these writ petitions, the Petitioners are seeking a direction against the Respondent in Islamabad for the vacancy in Quetta. It is interesting to note that in the Vacancy Announcement (Annex-A), the Petitioners were required to send the application form to the address in Quetta BTS Headquarter, H.No.146/528-A, Club Road, Queta Cantt, Balochistan. Therefore, the relief sought is about a vacancy in Quetta of the Respondent based in Islamabad.

7. The Honorable Supreme Court has elaborated the importance of territorial jurisdiction in the case of Sandalbar Enterprises (Pvt.) Limited v. Central Board of Revenue and others, **PLD 1997 SC 334**, that in order to determine the question of territorial jurisdiction, the dominant purpose behind recourse to law is to be taken into consideration. Further, it was also held that:

"A perusal of the above sub-clause (a)(i) of the above Article [199] indicates that a High Court has power to issue a direction to a person performing within its territorial jurisdiction functions in connection with the affairs of the Federation, a Province or a Local Authority to refrain from doing anything he is not permitted by law to do or to do anything he is required by law to do. Similarly, under sub-clause (a)(ii) a declaration without lawful authority or of no legal effect can be given by a High Court in respect of any act done or proceedings taken within its territorial jurisdiction by a person performing functions in connection with the affairs of the Federation, a Province or a Local Authority."

Similarly, it was held in Sandalbar case supra that:

"We may observe that it has become a common practice to file a writ petition either at Peshawar, or Lahore, or Rawalpindi or Multan etc. to challenge the order of assessment passed at Karachi by adding a ground for impugning the notification under which a particular levy is imposed. This practice is to be depreciated. The Court is to see, what is dominant object of filing of the writ petition. In the present case, the dominant object was not to pay the regulatory duty assessed by a Customs official at Karachi. We are, therefore, not inclined to grant leave. Leave is refused."

In Black's Law Dictionary "dominant jurisdiction principle" has been defined as under:

"dominant jurisdiction principle. The rule that the court in which a case is first filed maintains the suit, to the exclusion of all other courts that would also have jurisdiction."

8. Similarly, the honorable Sindh High Court has emphasized in the case of Subhan Beg and 18 others v.

Pakistan State Oil Co. Ltd. Rawalpindi PLD 1980 Kar. 113
at Para 13 that:

"(13) A careful perusal of Article 199 of the Constitution would show that there is a two-fold limitation on the jurisdiction of the High Court under Article 199 of the Constitution in its territorial aspect. The first limitation seems to be that the power is to be exercised by the High Court throughout the territories in relation to which the High Court exercises jurisdiction. This means that the writ issued by the High Court cannot run beyond the territories subject to its jurisdiction. The second limitation appears to be that the person or authority, to whom the writ is issued, must be within the territories subject to the jurisdiction of the High Court which means that such person or authority must be amenable to the jurisdiction of the High Court either by residence or location within those territories."

9. The Honorable Division Bench of Lahore High Court, in the matter of Muhammad Farhan Khan v. Federation Of Pakistan and another, PLD 2016 Lahore 629, has held at Para 3 that:

"3.The authority of this Court to judicially review the vires of an act done or proceedings taken in connection with the affairs of the Federation, within its territorial jurisdiction cannot be doubted, however, the Constitutional arrangements contemplated under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973 are to be faithfully observed in order to uphold the principle of judicial comity and harmony."

10. It is a recognized principle of law that constitutional jurisdiction or jurisdiction of judicial review by High Court is exercised under Article 199 of the Constitution and not under any other instrument. The Lahore High Court is created by Constitution of Pakistan, thus, it can only exercise powers which are conferred upon it by or under the Constitution. High Court under Art.199 of the Constitution enjoyed ample powers but it was mandatory upon High Court to confine itself to its territorial jurisdiction as provided in the Constitution, and no one should consider constitutional jurisdiction of High Court

fragile to misuse or deviate from same to meet his own designs or suitability. (*ref. Mirza Luqman Masud v. Government Of Pakistan and 14 others*, 2015 PLC (C.S.) 526 [Balochistan] – DB; *Azad Hafeez Ltd v. Chairman, FBR and 5 others*, 2012 M L D 1684 [Islamabad]; *Ibrahim Fibres Ltd. v. Federation Of Pakistan and 3 others*, 2009 PLD 154 [Karachi] – DB; *Dr. Qaiser Rashid v. Federal Secretary, Ministry Of Foreign Affairs, Government Of Pakistan, Islamabad*, PLD 2006 Lahore 789 – DB; *InaamElahi Nasir and others v. National Bank Of Pakistan and others*, 2013 PLC (C.S.) 899 [Islamabad]; *Danish Kaneria v. Pakistan and others*, 2012 CLC 389 [Sindh] – DB; *Mrs. Rohi Chaudhry and 2 others v. Federation Of Pakistan and 3 others*, 2010 PTD 1233 [Karachi]; *High Noon Textile Ltd v. Saudi Pak Industrial And Agricultural Investment Co. (Pvt.) Ltd and 4 others*, 2010 CLD 567 [Lahore]; *Muhammad Maqsood Sabir Ansari v. District Returning Officer, Kasur and 3 others*, 2007 CLC 1113 [Lahore]; *Mst. Shahida Maqsood v. President Of Pakistan and another*, 2004 CLC 565 [Karachi] – DB; *Province of NWFP and another v. Abdur Rahman, Forest Contractor and others*, 1991 SCMR 1321; *Muhammad Naim v. State Cement Corporation Of Pakistan and others*, 1989 CLC 1241 [Karachi] – DB)

11. The Honorable Lahore High Court in Sethi and Sethi Sons vs. Federation of Pakistan, 2012 PTD 1869, has also held that

“Requirement to determine the "dominant object" or primary grievance of the petitioner or the paramount purpose of the petition was essential for the purposes of identifying the actual 'person' against whom writ was being sought, which in turn became relevant for carrying out circumferential determination whether the 'person' fell within the territorial jurisdiction of the High Court. “

12. The word “territorial jurisdiction” has been defined by Justice (R) Fazal Karim in Judicial Review of Public Action, as follows:-

“Territorial jurisdiction is the power of a court or tribunal considered with reference to the territory within which it is to be exercised. It means the geographical limits within which the judgments and orders of a court can be enforced and executed. The object of defining the territorial limits of the courts and tribunals generally is to avoid a clashing of jurisdiction”

13. From the perusal of the instant petition(s), arguments of the learned counsels and documents annexed therein, the primary dominant object of filing these constitutional petitions is the appointment at the position of Junior Patrol Officer on Minority Punjab Quota by the Respondent, addressed at Islamabad. Hence, after examining the facts and circumstances of the present case the Court is of the opinion that both institutions, the Respondent and Balochistan Testing Service, fall outside the territorial jurisdiction of this Court, do not function within the territorial jurisdiction of this Court, and are not amenable to the jurisdiction of this Court. Importantly, issuance of writ is an extraordinary jurisdiction of High Court and is invoked when stipulations in the Constitution for its issuance are met. The Petitioner(s) have failed to satisfy that this High Court could exercise jurisdiction against respondent who were neither appointed nor carrying out their duties, with respect to the matter at hand, within the territorial jurisdiction of this High Court, whereby this High Court could exercise jurisdiction.

14. This Court is, therefore, of the considered opinion that this Court does not have the jurisdiction to issue a writ in these constitutional petitions, and has no jurisdiction to issue direction to Respondents in Islamabad for a vacancy

in Quetta. The best course for the Petitioners is to approach appropriate forum for the redressal of their grievances.

15. In view of above, these petitions being not maintainable and having failed to qualify the test of jurisdiction, are **dismissed**.

(JAWAD HASSAN)
JUDGE

APPROVED FOR REPORTING

JUDGE

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Writ Petition No.38191 of 2016

AhsanIqbal

V/S *National Highway & Motorway Police*

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05.12.2016

Mr. Muhammad Suleman, Advocate for the
Petitioner.
Ms. Sadia Malik, Standing Counsel.

Vide my detailed order of even date passed in Writ
Petition No.38173of 2016, this writ petition is also
dismissed in the same terms.

(JAWAD HASSAN)
JUDGE